



THE POLICE COMMISSIONER
CITY OF NEW YORK

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2020-22717 regarding Police Officer Ariel Castillo

Date: March 15, 2022

This disciplinary matter was investigated by Police Department investigators, who substantiated allegations that Police Officer Ariel Castillo engaged in a physical altercation with his brother and that he failed to remain at the scene of the altercation and request a Police Department supervisor to respond.

In this case, Police Officer Castillo was involved in a physical altercation with his brother while at a family dinner. After Officer Castillo left, his brother requested a police response. Police Officer Castillo fully cooperated in the investigation and has completed all required counseling. The investigation determined that there were no prior documented altercations between Officer Castillo and his brother, and based on the evidence, it appears that the likelihood of reoccurrence is minimal. The investigation also determined that Officer Castillo's brother's actions contributed to the altercation. It must also be noted that Officer Castillo has over seventeen years of service with the Police Department, with no formal disciplinary history and he has consistently received excellent reviews from his supervisors.

After reviewing the facts and circumstances of this matter, I have determined that, while the underlying incident does fall within the sphere of domestic violence, its unique nature and the corresponding unlikelihood of its repetition, along with Officer Castillo's brother's contribution to the situation, and Officer Castillo's otherwise commendable record, warrant a mitigated penalty that does not include dismissal probation.

Therefore, a penalty consisting of the forfeiture of thirty (30) pre-trial suspension days already served, and five (5) vacation days, will be imposed in this matter.

A handwritten signature in black ink, appearing to read "K. Sewell", is written over a horizontal line.

Keechant L. Sewell
Police Commissioner